



CHAPTER xxxv

An Act to confirm a Provisional Order made by the Minister of Transport under the Maidstone Corporation Act, 1923, relating to Maidstone Corporation trolley vehicles.
[1st August, 1962]

WHEREAS under the authority of section seventeen of the Maidstone Corporation Act, 1923, the Minister of Transport has made the Provisional Order set out in the schedule to this Act annexed:

And whereas a Provisional Order made by the Minister of Transport under the authority of the said section is not of any validity or force whatever until the confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Order made by the Minister of Transport under the authority of the said section and set out in the schedule to this Act annexed be confirmed by Act of Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The Order set out in the schedule to this Act annexed shall be and the same is hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full force and validity and the date of the same shall be the date of the passing of this Act.

2. This Act may be cited as the Maidstone Corporation Short title. (Trolley Vehicles) Order Confirmation Act, 1962.

SCHEDULE

MAIDSTONE CORPORATION (TROLLEY VEHICLES)

Provisional Order authorising the mayor aldermen and burgesses of the borough of Maidstone to maintain and use trolley vehicles upon additional routes in the borough of Maidstone.

Short and
collective
titles.

1.—(1) This Order may be cited as the Maidstone Corporation (Trolley Vehicles) Order 1962.

(2) The Maidstone Corporation (Trolley Vehicles) Orders 1927 to 1958 and this Order may be cited together as the Maidstone Corporation (Trolley Vehicles) Orders 1927 to 1962.

Interpretation.

2. In this Order the following expressions have unless the subject or context otherwise requires the meanings hereinafter assigned to them (namely):—

“ the Act of 1923 ” and “ the Order of 1927 ” mean respectively the Maidstone Corporation Act 1923 and the Maidstone Corporation (Trolley Vehicles) Order 1927;

“ the borough ” means the borough of Maidstone;

“ the Corporation ” means the mayor aldermen and burgesses of the borough;

“ trolley vehicle ” means a mechanically propelled vehicle adapted for use upon roads without rails and moved by electrical power transmitted thereto from some external source.

Additional
trolley vehicle
routes.

3. The Corporation may use trolley vehicles upon the following trolley vehicle routes in the borough (that is to say):—

Route No. 1 (3 furlongs 4.1 chains or thereabouts in length) commencing at the junction of Wallis Avenue West and Brishing Lane with Wallis Avenue East and passing along that road to its junction with Bell Road, thence along that road to and terminating at its junction with Brishing Lane;

Route No. 2 (3 furlongs 4.8 chains or thereabouts in length) commencing at the junction of Wallis Avenue East with Long Shaw Road and passing along that road to its junction with Selby Road, thence along that road to its junction with Bicknor Road, thence along that road to and terminating at its junction with Wallis Avenue East:

Provided that before equipping either of the trolley vehicle routes to include a turning point or before arranging for a new turning point on either route the Corporation shall submit plans of the turning point to the Minister of Transport for approval.

Power to
borrow.

4.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they

shall pay off all moneys so borrowed within the respective periods mentioned in the third column of the said table (namely):—

(1) Purpose	(2) Amount	(3) Period for repayment calculated from the date or dates of borrowing
(a) The provision of electrical vehicle equipment and the construction of other works necessary for working trolley vehicles on the routes authorised by this Order.	£5,700	Twenty years.
(b) The payment of the costs charges and expenses of this Order.	The sum requisite.	Five years.

(2) For the purposes of subsection (2) of section 156 (Power to borrow) of the Act of 1923 as modified by section 197 of the Local Government Act 1933 the purposes of this Order shall be deemed to be purposes of Part II (Trolley vehicles omnibuses and light railways) of the Act of 1923.

5. It shall not be lawful to exercise the powers of borrowing conferred by this Order (other than the power of borrowing to pay the costs charges and expenses of preparing obtaining and confirming this Order) otherwise than in compliance with the provisions of any Order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946. Saving for powers of Treasury.

6. The provisions of the Lands Clauses Acts and of Part II of the Act of 1923 (except sections 8 and 23 of that Act) as applied to the Order of 1927 by section 2 (Incorporation of Acts) and section 7 (Application of Part II of Act of 1923) of that Order and the provisions of section 70 (Application of revenue of undertakings) of the Maidstone Corporation Act 1935 shall so far as applicable and with any necessary modifications extend and apply to the exercise of the powers of this Order as if the same were with any such modifications set out in this Order: Application of previous enactments.

Provided that for the purposes of such extension and application section 40 (Conveyance of mails) of the Act of 1923 shall have effect as if the words “the Post Office Act 1953” were substituted for the words “the Conveyance of Mails Act 1893”.

7. Section 8 (As to lands) of the Order of 1927 shall so far as applicable and with any necessary modifications extend and apply to the exercise of the powers of this Order as if the same were with any such modifications set out in this Order. Application of provisions of section 8 of Order of 1927.

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Undertaking
to form part
of trolley
vehicle
undertaking.

8. The undertaking authorised by this Order shall be deemed to form part of the trolley vehicle undertaking authorised by the Act of 1923 and the Maidstone Corporation (Trolley Vehicles) Orders 1927 to 1958.

Saving for
town and
country
planning.

9. This Order shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Costs of
Order.

10. All costs charges and expenses of and incidental to the preparing and obtaining and confirming of this Order or otherwise incurred in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation.

Table of Statutes referred to in this Act

Short title	Session and chapter
Conveyance of Mails Act 1893... ..	56 & 57 Vict. c. 38.
Maidstone Corporation Act 1923	13 & 14 Geo. 5. c. xxxi.
Local Government Act 1933	23 & 24 Geo. 5. c. 51.
Maidstone Corporation Act 1935	25 & 26 Geo. 5. c. lxxxix.
Borrowing (Control and Guarantees) Act 1946	9 & 10 Geo. 6. c. 58.
Town and Country Planning Act 1947 ...	10 & 11 Geo. 6. c. 51.
Post Office Act 1953	1 & 2 Eliz. 2. c. 36.

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ARRANGEMENT OF SECTIONS

Section

1. Confirmation of Order in schedule.
2. Short title.

SCHEDULE

MAIDSTONE CORPORATION (TROLLEY VEHICLES)

1. Short and collective titles.
2. Interpretation.
3. Additional trolley vehicle routes.
4. Power to borrow.
5. Saving for powers of Treasury.
6. Application of previous enactments.
7. Application of provisions of section 8 of Order of 1927.
8. Undertaking to form part of trolley vehicle undertaking.
9. Saving for town and country planning.
10. Costs of Order.